

JACOB *v.* NEW YORK CITY.CERTIORARI TO THE CIRCUIT COURT OF APPEALS FOR THE
SECOND CIRCUIT.

No. 589. Argued March 6, 1942.—Decided March 30, 1942.

1. Contributory negligence and assumption of risk are not available as defenses to suits under the Jones Act; the admiralty doctrine of comparative negligence applies. P. 755.
 2. Upon the evidence, the plaintiff in this action under the Jones Act for personal injuries suffered in a fall caused by his use of a defective wrench, which he had asked his superior to replace, was entitled to have the case submitted to the jury on the issue whether his injuries resulted from defect or insufficiency, due to the employer's negligence, in its appliances; and the dismissal of his complaint was a denial of his statutory right of jury trial. P. 756.
 3. Under the Jones Act, it is a duty of the employer to furnish reasonably safe and suitable simple tools when he is aware that those in use are defective; the employee need not furnish his own simple tools when he finds those of the employer defective. P. 758.
 4. The trial court's exclusion of opinion evidence as to the best type of tool for the work, was not error warranting reversal. P. 758.
- 119 F. 2d 800, reversed.

CERTIORARI, 314 U. S. 595, to review the affirmance of a judgment dismissing the complaint in an action for personal injuries under the Jones Act.

Mr. Dominick Blasi, with whom *Mr. Silas B. Axtell* was on the brief, for petitioner.

Mr. Alfred T. White, with whom *Messrs. William C. Chanler* and *Paxton Blair* were on the brief, for respondent.

MR. JUSTICE MURPHY delivered the opinion of the Court.

The right of jury trial in civil cases at common law is a basic and fundamental feature of our system of federal jurisprudence which is protected by the Seventh Amendment. A right so fundamental and sacred to the citizen,